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Amending Acts

1. Some Nepal Acts Amendment Act, 2075 2075.11.19
2. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act No. 22 of the Year 2073

An Act Made to Amend and Consolidate Laws Relating to the Functions, Duties and Powers of the Election Commission

Preamble: Whereas, it is expedient to amend and consolidate laws relating to the functions, duties and powers of the Election Commission,

Now, therefore, the Legislature-Parliament, pursuant to sub-article (1) of Article 296 of the Constitution of Nepal, has enacted this Act. Chapter-1
Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Election Commission Act, 2073".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Commissioner" means the Election Commissioner of the Commission and said term shall also refer to the Chief Election Commissioner.

(b) "Commission" means the Election Commission pursuant to Article 284 of the Constitution.

(c) "Candidate" means a person whose name is included in the final list of candidates for any election pursuant to the prevailing federal law.

(d) "Prescribed" or "as prescribed" means prescribed or as prescribed by this Act or rules made under this Act or orders issued by the Commission by publishing a notice in the Nepal Gazette.

(e) "Registration Officer" means the Chief Registration Officer, Registration Officer or Assistant Registration Officer designated by the Commission for the work of collecting names and other necessary details of voters, preparing or updating the electoral roll, etc.

(f) "Election" means the election of the President, Vice-President, members of the Federal Parliament, members of the Provincial Assembly and members of the Local Level held pursuant to the Constitution and federal law, and said term shall also refer to by-elections.

(g) "Election Officer" means the Election Officer as prescribed.

(h) "Election Official" means the Chief Election Official or Election Official appointed pursuant to Section 19, and said term shall also refer to the Assistant Election Official.

(i) "Election Period" means the period from one hundred twenty days before the date of election until the final result of the election is made public.

Provided that if the election date is announced with a period of less than one hundred twenty days, the period from the date of such announcement until the final result of the election is made public shall be deemed to be the election period.

(j) "Voter" means a person whose name is included in the final electoral roll pursuant to federal law.

(k) "Political Party" means a political party registered with the Commission pursuant to federal law.

(l) "Secretary" means the Secretary of the Commission.

(m) "Constitution" means the Constitution of Nepal. Chapter-2
Functions, Duties and Powers of the Commission

3. Fixing Election Date: (1) Unless otherwise provided for in federal law, the Government of Nepal shall fix the date for holding an election. Provided that before fixing the date of such election, the Government of Nepal shall consult the Commission.

(2) A notice of the election date fixed pursuant to sub-section (1) shall be published in the Nepal Gazette. 4. Authority to Send Written Communication for Security Arrangements: (1) The Commission may send a written communication to the Government of Nepal or the Provincial Government or the Local Government for effective security management of the election.

(2) If a written communication is received from the Commission pursuant to sub-section (1), the Government of Nepal or the Provincial Government or the Local Government shall make effective security arrangements and inform the Commission about the security plan. 5. To Monitor or Cause to Monitor: (1) The Commission may form a team including its officials or employees or employees of the Government of Nepal or employees of the Provincial Government or experts, and monitor or cause to monitor election campaigning, voting related to the election, counting of votes or other works and proceedings.

(2) While forming a team pursuant to sub-section (1), the Commission shall also determine the electoral constituency to be monitored, the procedure to be adopted while monitoring, and the time within which such team must complete the monitoring work. 6.

Permission to Observe: (1) The Commission may grant permission to any domestic or foreign person or institution to observe the works and proceedings related to the election. (2) A person or institution that has obtained permission pursuant to sub-section (1) must observe by fulfilling the procedure prescribed by the Commission for observation, and the Commission shall revoke the permission of a person or institution that observes without following such procedure. (3) A person or institution that has obtained permission pursuant to sub-section (1) shall submit a report thereof to the Commission within thirty days of the completion of the observation work. (4) A domestic or foreign person or institution that has obtained permission for observation pursuant to this section must comply with the code of conduct made by the Commission while observing. 7. Authority to Seek Assistance: (1) The Commission may, for election work, directly contact and seek any assistance from the Government of Nepal, Provincial Government or Local Level, or any ministry, department

or office of the Government of Nepal or Provincial Government, or an institution owned or controlled by the Government of Nepal or Provincial Government or operated on grant from the Government of Nepal. (2) The Commission may, for work related to the election, seek necessary assistance from or get election-related work done by any public or private institution. (3) It shall be the duty of the concerned institution or body to provide the assistance requested by the Commission pursuant to sub-section (1) or (2). 8.

Authority to Use Physical Facilities: (1) The Commission may, for conducting election work, obtain and use, as required, land, buildings, means of transport, furniture or any other physical facilities of the Government of Nepal, Provincial Government, institutions owned or controlled by the Government of Nepal or Provincial Government, or the Local Level, giving prior notice. (2) The Commission may, for conducting election work, obtain and use, as required, land, buildings, furniture or other physical facilities of any public institution or body, or community or private school or college, giving prior notice. (3) The Commission may, for conducting election work, use the land, buildings, means of transport, furniture or other physical facilities of any person or non-governmental organization or body by paying rent according to the prevailing rate. (4) In case the Commission or by order of the Commission uses the land, building, means of transport, furniture or other physical facilities of any person or institution or body for any election work by paying rent according to the prevailing price, the Commission shall pay rent according to the prevailing rate for such land, building, means of transport, furniture or other physical facilities used during such period. (5) If the land, building, means of transport, furniture or other physical facilities used by the Commission or by order of the Commission for any election work require repair due to breakage or if compensation needs to be paid, the Commission shall pay the amount according to the prevailing price equivalent to the loss incurred for such repair or compensation. 9.

Decision Regarding Disqualification of Candidate: (1) After the nomination of a candidate has been filed but before the election result has been declared, a complaint may be filed with the Election Commission through the concerned Election Official, along with clear evidence, on the matter of whether a candidate is disqualified or has become disqualified. (2) If a complaint is received pursuant to sub-section (1), the concerned Election Official may give a deadline of seven days to such candidate and seek clarification in that regard. (3) After clarification is received pursuant to sub-section (2), or if no clarification is received within the deadline, the concerned Election Official shall, mentioning the same fact, send the complaint filed pursuant to sub-section (1) and related documents to the Commission as soon as possible. (4) After receiving the complaint and related documents pursuant to sub-section (3), the Commission may, if it wishes, hear the concerned candidate or request additional evidence. (5) The Commission shall, upon conducting necessary inquiry into the complaint and attached documents received pursuant to this section, make a decision regarding the disqualification of the candidate within seven days from the date of receipt of the complaint before it from the Election Official pursuant to sub-section (3). (6) The procedure to be adopted while making a decision regarding the disqualification of a candidate by the Commission pursuant to this section shall be as determined by the Commission. (7) Notwithstanding anything contained elsewhere in this section, the work and proceedings of such election shall not be affected merely because the Commission has not made a decision regarding the disqualification of a candidate pursuant to this section. 10. Authority to Annul Election:

(1) If a complaint is filed with the Commission or if the Commission receives information that someone has, by showing threat, intimidation, fear or terror or by exerting undue influence in any other manner, done any act affecting the impartiality and freedom of any election work or voting work in any constituency or polling center, the Commission may cause an immediate inquiry to be made in that regard by any Commissioner, Secretary or other official authorized by the Commission. (2) If, from the report of the inquiry caused by the Commission pursuant to sub-section (1), the Commission is satisfied that any election work was not free and

impartial, it may, stating such fact, annul the election of such constituency or the voting work of any or all polling centers of such constituency. 11.

Other Functions, Duties and Powers: In addition to the functions, duties and powers mentioned in the Constitution, this Act and other federal laws, the other functions, duties and powers of the Commission shall be as follows:- (a) To prepare policies, plans, strategies related to elections, and to implement and monitor them, (b) To make necessary arrangements for voter identification, (c) To conduct necessary studies and research on matters related to electoral reform, (d) To integrate election-related information and statistics and manage records, (e) To make necessary arrangements related to infrastructure development of election offices, (f) To make arrangements for providing expert services related to elections, (g) To expand relations with international organizations related to elections. Chapter-3 Conduct of Business and Management of the Commission 12. Division of Work of the Commission: The division of work of the Chief Election Commissioner and Commissioners shall be as specified by the Commission. 13. Meetings and Decisions of the Commission: (1) All work to be done by the Commission pursuant to the Constitution and prevailing law shall be done by the Chief Election Commissioner alone if he/she is the only Commissioner, and if there are other Commissioners as well, by holding a meeting of them and as decided. (2) The meeting of the Commission shall be chaired by the Chief Election Commissioner. (3) The meeting of the Commission shall be held at such time as called by the Chief Election Commissioner as necessary. (4) The record of the decision of the Commission shall be certified by the Secretary of the Commission and kept duly. (5) The procedure relating to the meeting of the Commission shall be as determined by the Commission. 14. Work and Proceedings of the Commission Not Invalidated: The work and proceedings of the Commission shall not be invalidated merely by reason of the vacancy in the position of any Commissioner. 15. Secretariat of the Commission: There shall be a Secretariat of the Commission at the central level for the conduct of business and management of the Commission. 16. Provincial and Other Offices of the Commission: (1) The Commission may, as required for the work to be performed by itself, establish offices in provinces and other places as prescribed. (2) The functions, duties and powers of the offices established pursuant to sub-section (1) shall be as prescribed. (3) In addition to the functions, duties and powers mentioned in sub-section (2), the offices established pursuant to sub-section (1) shall also carry out responsibilities specified or delegated by the Commission. 17.

Organizational Structure and Employee Management of the Commission: (1) The organizational structure and employee posts of the Commission shall be as approved by the Government of Nepal upon the recommendation of the Commission. (2) The employees required for the conduct of business and management of the Commission shall be provided by the Government of Nepal. 18. Secretary of the Commission: (1) There shall be one Secretary to act as the administrative chief of the Commission. (2) The Secretary shall, under the general direction of the Chief Election Commissioner, exercise the following functions, duties and powers in addition to those specified in this Act and other prevailing laws:- (a) To do or cause to do work related to the administration and management of the Commission, (b) To prepare or cause to prepare the annual budget, programs and plans of the Commission and submit them to the Commission, (c) To look after or cause to look after the movable and immovable property of the Commission, (d) To make or cause to make necessary arrangements for the smooth conduct of the work and proceedings of the Commission, (e) To implement or cause to implement the policies, programs and decisions of the Commission, (f) To do or cause to do other work as specified by the Commission. 19. Authority to Appoint or Designate Employees: (1) The Commission may, for preparing the electoral roll, create necessary positions including Chief Registration Officer, Registration Officer, Assistant Registration Officer, Electoral Roll Collectors, and for election work, create necessary positions including Chief Election Official, Election Official,

Assistant Election Official, Polling Officer, Assistant Polling Officer, and appoint or designate employees as required to such positions. (2) The Commission may, to assist the concerned officials in performing the functions pursuant to sub-section (1), deploy or engage employees of the Government of Nepal, Provincial Government and Local Level, or employees of institutions owned or controlled by the Government of Nepal or Provincial Government or operated on grant from the Government of Nepal, or teachers or employees of universities or community schools. (3) Teachers or employees involved in election work pursuant to sub-section (1) or (2) shall be deemed to be employees of the Commission until the election work is completed. (4) An employee deployed or engaged in election work shall not be transferred or sent on deputation without the approval of the Commission. (5) Notwithstanding anything contained in the prevailing law, no employee shall be transferred or sent on deputation during the election period without the approval of the Commission. 20.

Creation of Temporary Posts: (1) The Commission may create temporary posts for a maximum of up to six months, in the required number, for conducting election work. (2) The Commission may appoint to the posts created pursuant to sub-section (1) an employee who has retired from any service of the Government of Nepal, on the condition that he/she shall receive the facilities of the post from which he/she retired. (3) If the work of such post is not completed within the period pursuant to sub-section (1), the Commission may extend the term once or several times for up to six months. (4) The Commission may appoint to the posts created pursuant to sub-section (1) on a temporary, contract or wage basis. Added by Some Nepal Acts Amendment Act, 2075. Provided that while creating temporary posts or appointing employees on contract or wage basis pursuant to this section, it shall be done in accordance with the procedure made by the Commission with the consent of the Ministry of Finance, Government of Nepal. 21. Authority to Utilize Expert Services: (1) The Commission may, as required, utilize the services of experts in relation to election work. (2) The terms of reference and remuneration for the services of experts utilized pursuant to sub-section (1) shall be as determined by the Commission. Chapter-4 Election Code of Conduct 22. Election Code of Conduct: (1) The Commission may, to maintain cleanliness, impartiality, transparency and fear-free environment in elections, frame a code of conduct to be followed by the following bodies or persons:- (a) Offices and employees of government and semi-government institutions of the Government of Nepal, Provincial Government and Local Level, (b) Offices and security personnel of the Nepali Army, Nepal Police, Armed Police Force, Nepal, National Investigation Department and Provincial Police, (c) Employees involved in election work, (d) Political parties, (e) Candidates and persons related to candidates, (f) Government and private sector communication media, (g) Private and non-governmental organizations, (h) Other bodies or persons specified by the Commission. (2) The Commission shall consult with the relevant stakeholders while making the code of conduct pursuant to sub-section (1). (3) While making the code of conduct pursuant to sub-section (1), the Commission may specifically make a code of conduct on matters preventing the Government of Nepal from announcing new policies, plans and programs, mobilizing manpower and resources, and using government communication media for election campaigning in a manner affecting the cleanliness and impartiality of the election. (4) The code of conduct made by the Commission pursuant to sub-section (2) shall be published in the Nepal Gazette, and it shall be the duty of all concerned to comply with such code of conduct. 23.

Implementation and Monitoring of Code of Conduct: (1) The Commission shall, as required, create a mechanism and conduct inquiry and monitoring regarding whether the code of conduct made by the Commission pursuant to Section 22 has been complied with or not. (2) While conducting inquiry or monitoring pursuant to sub-section (1), if it appears that the code of conduct has not been complied with or has been violated by anyone, the Commission shall order the concerned political party, candidate, person, institution, office bearer or body to immediately stop or annul such act. (3) The Commission may impose a fine of up to

one hundred thousand rupees on a political party, candidate, person, institution, office bearer or body that does not stop or annul the work or proceeding according to the order given by the Commission pursuant to sub-section (2). (4) If the Commission is satisfied that an election cannot be held in a free, clean and fair manner due to the violation of the code of conduct made by the Commission by any candidate, the Commission may, stating the clear basis and reason therefor, cancel the candidacy of such candidate. Before canceling the candidacy in this manner, the concerned candidate shall be given a reasonable opportunity to defend himself/herself.

Chapter-5 Provisions Relating to Election Expenditure

24. Ceiling on Election Expenditure: (1) The Commission shall fix the maximum ceiling of expenditure that may be incurred by a political party or candidate in an election. (2) The Commission shall publish a notice of the maximum ceiling fixed pursuant to sub-section (1) in the Nepal Gazette. (3) A political party or candidate participating in an election shall not incur or cause to incur election expenditure exceeding the maximum ceiling fixed pursuant to sub-section (1). (4) A political party or candidate participating in an election shall not incur or cause to incur election expenditure exceeding the maximum ceiling fixed pursuant to sub-section (1).

25. Details of Election Expenditure to be Submitted: (1) A political party or candidate having the obligation to submit details of election expenditure shall, within thirty days from the date of publication of the final result of the election, submit the details of election expenditure to the office specified by the Commission, in the format specified by the Commission, along with bills and receipts of expenditure. (2) The details of election expenditure submitted pursuant to sub-section (1) may, if specified by the Commission, be audited by a recognized auditor. (3) A political party or candidate having the obligation to submit details of election expenditure shall, within thirty days from the date of publication of the final result of the election, submit the details of election expenditure to the office specified by the Commission, in the format specified by the Commission, along with bills and receipts of expenditure. (4) The details of election expenditure submitted pursuant to sub-section (1) may, if specified by the Commission, be audited by a recognized auditor.

Penalty for Exceeding Ceiling in Election: (1) The Commission may impose a fine on a political party or candidate who incurs expenditure exceeding the maximum ceiling pursuant to sub-section (1) of Section 24 or fails to submit expenditure details within the period specified pursuant to sub-section (1) of Section 25, equivalent to whichever is higher of the election expenditure incurred by him/her or the expenditure ceiling determined by the Commission. (2) If a political party or candidate fails to submit details of election expenditure pursuant to sub-section (1) of Section 25, or if upon audit of the details submitted pursuant to sub-section (2) of the same section, it appears that expenditure has been incurred in an abnormal manner affecting the cleanliness of the election or illegally for an unlawful purpose based on the auditor's report, the Commission may, Added by Some Nepal Acts Amendment Act, 2082.keeping a record thereof, impose a fine on such political party or candidate equivalent to whichever is higher of the expenditure so incurred or five hundred thousand rupees. (3) If a political party or candidate fails to pay the fine imposed pursuant to sub-section (2) within six months, the Commission may, with effect from immediately, prohibit them from participating in any election for up to six years or declare them disqualified from being a candidate. (4) Before imposing a fine pursuant to sub-section (1) or (2) or making a decision pursuant to sub-section (3), the Commission shall give the concerned political party or person a reasonable opportunity to present their defense. (5) If the Commission has made a decision pursuant to sub-section (3) and such person has been elected, his/her election shall be automatically void.

Chapter-6 Budget Management and Audit

27. Budget Management of the Commission: (1) For the purpose of conducting, supervising, directing and controlling elections, the expenditure of the Commission shall be borne by the Federal Consolidated Fund. (2) The budget received by the Commission shall be managed by the Commission. (3) The budget allocated to the Commission for election purposes shall be expended pursuant to the prevailing law. (4) A political party or candidate failing to pay the fine imposed pursuant to sub-section (2) within six months, the Commission may, with effect from immediately, prohibit them from participating in any election for up to six years or declare them disqualified from being a candidate. (5) Before imposing a fine pursuant to sub-section (1) or (2) or making a decision pursuant to sub-section (3), the Commission shall give the concerned political party or person a reasonable opportunity to present their defense. (6) If the Commission has made a decision pursuant to sub-section (3) and such person has been elected, his/her election shall be automatically void.

28. Amended by Some Nepal Acts Amendment Act, 2075.Expenditure of Contingency Amount to be Made According to Approved Procedure: Notwithstanding anything contained in the prevailing law, the expenditure of the amount under the contingency heading allocated in the budget for the Commission shall be made based on the procedure made by the Commission with the consent of the Ministry of Finance, Government of Nepal. (3) A political party or candidate failing to pay the fine imposed pursuant to sub-section (2) within six months, the Commission may, with effect from immediately, prohibit them from participating in any election for up to six years or declare them disqualified from being a candidate. (4) Before imposing a fine pursuant to sub-section (1) or (2) or making a decision pursuant to sub-section (3), the Commission shall give the concerned political party or person a reasonable opportunity to present their defense. (5) If the Commission has made a decision pursuant to sub-section (3) and such person has been elected, his/her election shall be automatically void.

Authority to Mobilize Financial Resources: The Commission may, for the purpose of completing election work, in addition to the amount appropriated from the regular budget heading, mobilize separate financial

resources or receive assistance with prior approval of the Government of Nepal, provided that it is not contrary to the policy relating to development assistance.

30. Accounts and Audit: (1) The Commission shall keep accounts of the expenditure incurred on election-related work pursuant to the prevailing law. (2) The audit of the accounts kept by the Commission pursuant to sub-section (1) shall be carried out pursuant to the prevailing law.

Chapter-7 Miscellaneous

31. Authority to Seek Opinion and Advice: (1) The Commission may, prior to making a decision on any constitutional or election-related legal question, seek the opinion of the Office of the Attorney General or the Ministry of Law, Justice and Parliamentary Affairs or other experts if deemed appropriate. (2) The Commission may, in relation to its functions and duties, contact, consult or seek advice from any constitutional body or any ministry, department, office of the Government of Nepal, Provincial Government, Local Level, political party or any other body or institution.

32. Authority to Hold Discussion or Consultation: The Commission or its officials may hold discussions or consultations with any political party or representative of civil society, election experts or other concerned persons or institutions in the context of holding elections in a clean and free manner.

33. Voter Awareness Programs: The Commission may, as necessary, conduct or cause to conduct voter awareness programs to inform voters about the process of collecting and updating the electoral roll, voting procedures and voters' rights in elections.

34. Use of Innovative Technology: The Commission shall make arrangements for the use of innovative technology for election management.

35. Authority to Provide Facilities: (1) The Commission may provide an amount as determined by the Commission to officials or employees involved in any election work, and if required to work overtime, may also provide refreshment and meal expenses and overtime allowance. (2) The Commission may, as required, additionally provide an amount as determined by the Commission, in addition to the daily allowance and travel allowance that an official or employee deployed for any election work is entitled to receive pursuant to the prevailing law. (3) The Commission may provide an additional allowance as determined by the Commission to an official or employee deployed for any election work for the period during which they are involved in such work.

36. Insurance to be Provided: (1) The Commission shall provide insurance for accidents that may occur to officials, employees or teachers involved in election work during the election period.

The sum insured for such insurance shall be as specified by the Commission.

(2) The Government of Nepal shall provide insurance for accidents that may occur to security personnel involved in election work during the election period. The sum insured for such insurance shall be as specified by the Government of Nepal.

37. Authority to Incur Expenditure on Election: (1) An employee deployed for election work may be paid the daily allowance, travel allowance, other allowances and facilities entitled pursuant to the prevailing law at the time of deployment itself, by entering expenditure. (2) Notwithstanding anything contained in the prevailing law, the concerned employee shall not be required to submit bills and receipts for the amount received pursuant to sub-section (1). (3) The expenditure incurred for conducting elections shall be paid to the employees deployed for the election by entering expenditure according to the rate determined by the Commission, allowing them to spend. (4) In respect of the amount specified by the Commission out of the amount pursuant to sub-section (3), the employee deployed for election work shall not be required to submit bills and receipts after returning from the completion of the work for which he/she was deployed.

38. Amended by Some Nepal Acts Amendment Act, 2075. Authority to Purchase Goods: The Commission shall, while purchasing goods or services required for election purposes, do so pursuant to the prevailing law relating to public procurement. Provided that, in the event that it is not possible to complete the process of the prevailing law relating to public procurement while purchasing or obtaining services of election materials as specified that need to be managed urgently in relation to the election, the Commission may, stating the basis and reason, purchase goods or obtain services through an expedited method or directly from the market.

39. Authority to Give

Suggestions: (1) If it appears necessary to amend existing policies or prevailing laws for clean and free elections based on conclusions from the course of the Commission's work or from workshops, seminars or discussions organized by the Commission, the Commission may give suggestions to the concerned body. (2) Details of suggestions given pursuant to sub-section (1) shall be included in the annual report of the Commission. 40.

Authority to Give Directions: (1) The Commission may give necessary directions to any body or official regarding conducting elections. (2) If the Commission gives a direction pursuant to sub-section (1), the concerned body or official shall take necessary action on such matter and inform the Commission thereof. (3) The Commission may give necessary directions to the Secretary, employees of the Commission, Election Official, Election Officer, Polling Officer, Assistant Polling Officer, officers deployed for monitoring, Registration Officer or any other employee or person deployed for the election regarding the work they are required to perform. (4) It shall be the duty of all concerned to comply with the direction given by the Commission pursuant to sub-section (1). 41. Pleading: (1) If it becomes necessary for the Commission to file a petition in any court or to institute a case as a plaintiff regarding any legal right or dispute, the Commission shall take the assistance of a government attorney for preparing such petition, filing the case and pleading therein, or for preparing written answers or reply letters, filing, pleading or defending in case someone initiates any legal action or files a case against the Commission. (2) If a case or legal action is filed against officials, employees and persons appointed, deployed, designated or engaged by the Commission for any or all election-related work including preparing the electoral roll, for acts done in good faith in the course of performing their duties pursuant to the prevailing law, the Commission shall, based on necessity and appropriateness, cause their defense through a government attorney. 42. To be Gender-Friendly and Inclusive: The Commission shall, while determining election-related policies, conducting programs, deploying employees, monitoring or observing or causing to observe pursuant to this Act, adopt the principles of being gender-friendly and inclusive. 43.

Authority to Remove from Responsibility or Recommend Suspension: (1) If any employee of the Government of Nepal, Provincial Government or Local Level deployed for election work, any employee of an institution owned or controlled by the Government of Nepal or Provincial Government or operated on grant from the Government of Nepal, a security personnel, teacher or employee of a university or community school does any act that undermines the freedom, cleanliness and impartiality of the election, the Commission may remove such employee, security personnel or teacher from his/her election-related responsibility. (2) If a situation pursuant to sub-section (1) arises and it is necessary to suspend any employee, security personnel or teacher, the Commission may itself suspend immediately or recommend to the concerned authority for suspension. (3) If a recommendation is received pursuant to sub-section (2), the concerned official shall take necessary action regarding the suspension of such employee, security personnel or teacher within forty-eight hours and provide information thereof to the Commission. 44.

Departmental Action: (1) If any civil servant, security personnel or employee of the Government of Nepal or Provincial Government or Local Level, or employee of an institution owned or controlled by the Government of Nepal or Provincial Government or operated on grant from the Government of Nepal, appointed, deployed or designated for election work including preparing the electoral roll, or having the duty to obey the orders and directions of the Commission, commits any act or proceeding wilfully violating or acting in bad faith against the prevailing law or the order or direction of the Commission in the course of performing such work, or commits any act affecting the impartiality of the election, the Commission may exercise the powers of the authority pursuant to the prevailing law relating to the service conditions of such employee or security

personnel and take departmental action against him/her. (2) If any employee or official, other than those mentioned in sub-section (1), does any act contrary to the prevailing law or the direction given by the Commission in relation to election work, the Commission shall send a written communication to the concerned body for departmental action against such employee or official pursuant to the prevailing law relating to his/her service conditions. (3) If a written communication is received from the Commission pursuant to sub-section (2), the concerned body shall take departmental action against such employee or official within three months and inform the Commission thereof. (4) An employee not satisfied with the decision on departmental action made by the Commission pursuant to sub-section (1) may appeal to the concerned High Court within thirty-five days from the date of receipt or knowledge of the deadline for appeal against such decision. 45. Annual Report: The Commission shall submit details including the works and proceedings performed by it to the President in the form of an annual report each year pursuant to Article 294 of the Constitution and make it public. 46. Delegation of Powers: The Commission may delegate any power conferred upon it pursuant to this Act, subject to conditions, to the Chief Election Commissioner, a Commissioner or any government employee. 47. Contact with Government of Nepal: The Commission shall contact the Government of Nepal through the Ministry of Home Affairs. 48. Power to Frame Rules: The Commission may frame necessary rules for the implementation of this Act. 49.

Power to Issue Orders: (1) The Commission may, for the purpose of conducting, supervising, directing and controlling elections pursuant to the Constitution and prevailing federal law, issue necessary orders, and such order shall be published in the Nepal Gazette. (2) It shall be the duty of the following bodies, institutions, organizations or persons to comply with the order pursuant to sub-section (1):- (a) Government or semi-government bodies or institutions, (b) Private sector or non-governmental organizations, (c) Political parties and their office bearers, (d) Voters, (e) Candidates and their representatives, (f) Persons involved in election campaigning and monitoring, (g) Institutions or persons specified by the Commission from time to time. (3) The Commission may impose a fine of up to one hundred thousand rupees on a political party, candidate or other concerned body, institution, organization or person violating an order issued by the Commission pursuant to this section. 50. Power to Frame Directives and Procedures: The Commission may, remaining subject to this Act and rules made under this Act, frame and implement directives and procedures as necessary. 51. Repeal and Saving: (1) The Election Commission Act, 2063 is hereby repealed. (2) Works and proceedings done under the Election Commission Act, 2063 shall be deemed to have been done under this Act.